

Business Law — PREVIEW

Course: CS — Certified Secretaries | Level: Foundation Level

This is a free preview covering the introduction and Section 1 only.

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1. Nature and sources of law

Law is the body of rules, enforceable by the state, that governs conduct within a society. For a business, law defines what it may do, what it must do, and what remedies exist when rules are broken.

1.1 Classifications of law

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| Classification | Distinction |
|---|---|
| Public law vs private law | Public law governs the relationship between the state and individuals;
private law governs relationships between individuals/entities |
| Civil law vs criminal law | Civil law resolves disputes between parties; criminal law punishes conduct
deemed harmful to society |
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1.2 Sources of Kenyan law

- The Constitution — the supreme law.
 - Legislation (statutes) enacted by Parliament.
 - Subsidiary legislation made under an Act's authority.
 - Case law (judicial precedent).
 - Customary law, where applicable.
 - International law and ratified treaties.
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Unlock the full paper

The complete version includes the Kenyan court structure, contract formation and breach, remedies, the law of tort, agency, sale of goods, and business organisation law — plus a full worked case-study question and a 10-question original self-assessment kit with model answers.

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